

25STCV01198 25STCV01198

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 25STCV01198 Hearing Date: September 4, 2026 Dept: 11

Oh

(25STCV01198)

Tentative

Ruling Re: Motion to Seal

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Date: 9/4/26

Time: 11:00 am

Moving

Party: Simon Oh ("Plaintiff")

Opposing Party: None

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Plaintiff's motion to seal is granted.

BACKGROUND

This is a putative class action. Plaintiff alleges that Books-a-Million, Inc. (“Defendant”) “advertises fictitious regular prices (and corresponding phantom discounts) on products sold through its website at www.booksamillion.com[.]” (First Amended Complaint, p. 2.) He claims “[t]his practice allows Defendant to fabricate a fake ‘reference price’ and present the actual price as ‘discounted’ when it is not.” (Ibid.) He contends “[t]he result is a sham price disparity that is per se illegal under California law.” (Ibid.)

Recently,
the parties settled Plaintiff’s individual claims.

Here,
Plaintiff moves to seal Plaintiff’s declaration in part and the declaration Plaintiff’s counsel, Scott J. Ferrell, in part.
He asks the Court to seal the portions that reveal the settlement amount.

APPLICABLE LAW

The court
may order that a record be filed under seal only if it expressly finds facts that establish:

(1)

There exists an overriding interest that overcomes the right of public access to the record;

(2)

The overriding interest supports sealing the record;

(3)

A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;

(4)

The proposed sealing is narrowly tailored; and

(5)

No less restrictive means exist to achieve the overriding interest.

(Cal.

Rules of Court, rule 2.550(d).) “These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials.” (Weil & Brown, Cal.

Practice Guide: Civ. Proc. Before Trial (The Rutter Group June 2023 Update) ¶ 9:418, emphasis in original.)

The parties’ agreement to seal documents is not enough to support a motion to seal. (See id.

at ¶ 9:417.1 [“Parties sometimes operate under an informal arrangement pursuant to which documents are ‘deemed filed under seal’ unless an objection is made. Such an arrangement ‘is entirely inconsistent with the mandatory requirements of rules 2.550 and 2.551 and the constitutional values informing those requirements.’”].)

“Only the specific words of documents that constitute the sensitive material should be sealed; generally, it is not permissible to seal the entire document.” (Id. at ¶ 9:418.5.)

Case law recognizes that confidential settlement agreements “may include information that may warrant sealing[.]” (Id. at ¶¶ 9:418.5, 9:418.8; see also, e.g., *Universal City Studio, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273.)

But “[a] settlement agreement . . . does not qualify for sealing after all references to financial and other confidential data have been redacted.” (Weil & Brown, *supra*, at ¶ 9:418.20.)

DISCUSSION

In

light of these rules, the Court finds that the motion to seal should be granted

because:

- * an overriding interest exists in keeping the settlement amount confidential;

- * the overriding interest supports the sealing request;

- * there is a substantial probability that the overriding interest will be prejudiced if the motion is denied;

- * the sealing request is narrowly tailored since Plaintiff only seeks to seal the dollar amount of the settlement in the settlement agreement; and

- * sealing is the least restrictive means to protect the overriding interest.